Paragraph 1. Purpose of EMIR

The European Market Infrastructure Regulation (EMIR) aims to increase the stability of the over-the-counter (OTC) derivatives market by imposing reporting, clearing and risk-mitigation obligations on counterparties.

Paragraph 2. Reporting Obligations

All counterparties to an OTC derivative contract must report the following data elements to the European Trade Repository (ETR): Trade_ID, Asset_Class, Execution_Timestamp, Counterparty_LEI, Underlying_ISIN, Notional_Amount, Price, Quantity, Currency, and Maturity_Date where applicable.

Paragraph 3. Underlying ISIN Requirement

The Underlying_ISIN field shall contain a 12-character alphanumeric International Securities Identification Number (ISIN). An ISIN that does not conform to the ISO 6166 standard shall be considered invalid and the report shall be rejected.

Paragraph 4. Quantity and Notional Validation

Quantity must be a strictly positive integer. Notional_Amount must be a non-negative decimal value with up to two decimal places. Zero or negative values will trigger a validation error.

Paragraph 5. Record-Keeping and Access

Reporting firms must retain the original trade data and all supporting documentation for a minimum of five years. The records shall be made available to regulators upon request in a machine-readable format.

Paragraph 6. Timeliness of Reporting

All derivative contracts executed after 1 January 2021 must be reported to the ETR within one business day of execution. Late filings are subject to a monetary penalty of EUR 5,000 per breach.